

Here, Individual Defendants seek sanctions in the amount of \$3,466.20. Attorney Pena bills at an hourly rate of \$522 per hour and spent 3.8 hours reviewing and revising the opposition. Pena's associate, Matthew S. Gordon, spent 4.2 hours drafting his opposition and bills at a rate of \$353 per hour. **The Court issues sanctions against Plaintiff in the reduced amount of \$1482.60 based on Gordon's expended time, payable to Defendant's counsel within thirty (30) days of service of the notice of ruling.**

Defendant is ordered to give notice.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404781	COLOCHO VS CITY OF EASTVALE	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF KETTY COLOCHO BY CITY OF EASTVALE

Tentative Ruling:

The City's request for judicial notice is denied in its entirety.

Plaintiff's evidentiary objections are overruled in their entirety.

Plaintiff's request for a continuance to conduct further discovery under Code of Civil Procedure section 437c, subdivision (h), is denied.

Motion for Summary Judgment

I. Procedural Issues

A. Untimely Opposition

An opposition to a motion for summary judgment "shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise." (C.C.P. § 437c(b)(2).)

The hearing on this motion for summary judgment is set for August 6, 2026. Accordingly, Plaintiff should have filed her opposition by Friday, July 17, 2026. However, Plaintiff did not file the opposition until Monday, July 20, 2026. Plaintiff's

counsel contends that the late filing was due to “inadvertent clerical error.” (Hersel Decl. II, ¶ 3-5, Exhibit A.) However, counsel’s exhibit shows that her office knew that the opposition was due on July 17, 2026, but did not follow up on it until July 20, 2026. (Hersel Decl. II, Exh. A, p. 1 [“THIS IS NOT TO BE FILED UNTIL 7/17/26”].) It should further be noted that Plaintiff’s counsel has a history of failing to serve and file motions in a timely fashion, which has previously resulted in sanctions. (Minute Order dated June 23, 2026 [“The multiple failures of plaintiff’s counsel –in failing to serve a verification in a timely fashion, in failing to oppose the motion to deem admissions, and in failing to promptly move for relief from the deemed admissions -- are inexcusable.”].) Accordingly, no good cause has been shown, and the Court has not shortened the time required to file an opposition. As such, the opposition is untimely.

A trial court has broad discretion to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission. (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765; CRC 3.1300(d).) If the court decides to consider late-filed papers, circumstances may require a continuance of the hearing to allow the moving party an opportunity to reply to matters contained in them. (See *Hobson v. Raychem Corp.* (1999) 73 Cal.App.4th 614, 623 (dictum) [disapproved on other grounds by *Colmenares v. Braemar Country Club, Inc.* (2003) 29 Cal.4th 1019, 1031].)

Despite its objection, City was able to address Plaintiff’s opposition on the merits, albeit on a shortened timeline. Accordingly, the Court exercises its discretion to consider the untimely opposition.

B. Reply Separate Statement

Along with its reply, City filed responses to Plaintiff’s Response to City’s Separate Statement and Plaintiff’s Statement of Additional Material Facts. However, a “reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.” (C.C.P. § 437c(b)(4).) Accordingly, the Court declines to consider the separate statements filed with City’s reply.

C. Date of the Incident

Plaintiff argues City’s evidence, specifically Plaintiff’s responses to Requests for Admission, Set One, incorrectly refer to the date of the incident as July 31, 2023, but the incident occurred on July 13, 2023. However, Plaintiff’s argument is unavailing, as the evidence considered in ruling upon this motion refers to the date of this incident as July 13, 2023. (Chung Decl., ¶ 3, 5-6.) Further, after counsel clarified the date of the incident midway through Plaintiff’s deposition, Plaintiff testified that her prior deposition testimony was subject to the corrected date of July 13, 2023. (Colocho Decl., 47:2-15.) Lastly, “[n]o one can take advantage of their own wrong.” (Civ. Code § 3517.) Plaintiff acknowledges that her own Complaint refers to the date of the incident as both July 13 and July 31. (Complaint, ¶ 10 and 35.) Thus, Plaintiff’s argument is meritless.

II. Merits

Any party may move for summary judgment in any action or proceeding if it contends that the action has no merit or that there is no defense to the action or proceeding. (C.C.P. § 437c(a).)

A defendant can meet the initial burden by showing that one or more elements of the cause of action cannot be established, or that there is a complete defense. (C.C.P. § 437c(p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action, or show that the plaintiff lacks evidence. (*Chavez v. Glock* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claims fail as a matter of law. (*Eriksson v. Nunnick* (2011) 191 Cal.App.4th 826, 849 (applying rule to issues of duty).) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 845.) A defendant may not simply point to an absence of evidence, but must show that the plaintiff cannot reasonably obtain evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

"A defendant's motion for summary judgment should be granted if no triable issue exists as to any material fact and the defendant is entitled to a judgment as a matter of law." (*Kahn v. East Side Union High Sch. Dist.* (2003) 31 Cal.4th 990, 1002–1003.) "The moving party bears the burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th at 850.) Once this burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Ibid.*) "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Ibid.*)

"[I]n order to avert summary judgment the plaintiff must produce substantial responsive evidence sufficient to establish a triable issue of material fact on the merits of the defendant's showing. [Citations.] For this purpose, responsive evidence that gives rise to no more than mere speculation cannot be regarded as substantial, and is insufficient to establish a triable issue of material fact." (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 162-163.)

A public entity is liable for injury caused by a dangerous condition of its property if: (1) the property was in a dangerous condition at the time of the injury; (2) the dangerous condition caused the injury; (3) the dangerous condition created a reasonably foreseeable risk of the kind of injury incurred; and (4) a negligent, wrongful or omission of a public entity employee created the dangerous condition or (5) the public entity had actual or constructive notice of the dangerous condition and there was sufficient time before the injury for the government entity to take remedial action. (Gov. Code § 835;

People ex rel. Dept. of Transportation v. Superior Court (1992) 5 Cal.App.4th 1480, 1484.)

A. *Existence of Dangerous Condition*

A dangerous condition exists if it is “a condition of property that created a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code § 830(a)). The mere occurrence of the subject accident is “not in and of itself evidence that the public property was in a dangerous condition.” (*Ibid.*)

1. *Trivial Defect*

It is well-settled that a property owner is not liable for damages caused by a minor, trivial or insignificant defect in property. (*Cadam v. Somerset Gardens Townhouse HOA* (2011) 200 Cal.App.4th 383, 388.) This principle, referred to as the “trivial defect doctrine” or the “trivial defect defense,” is not an affirmative defense but is an aspect of duty that a plaintiff must plead and prove. (*Ibid.*; see also *Huckey v. City of Temecula* (2019) 37 Cal.App.5th 1092, 1104.) “Persons who maintain walkways – whether public or private – are not required to maintain them in absolutely perfect condition.” (*Cadam, supra*, 200 Cal.App.4th at 388.) “The duty of care imposed on a property owner, even one with actual notice, does not require the repair of minor defects.” (*Ibid.* [citation and internal quotation marks omitted].) What constitutes a trivial defect may be a question of law where reasonable minds can reach but one conclusion. (*Id.* at 388-89; *Caloroso v. Hathaway* (2004) 122 Cal.App.4th 922, 929; *Huckey*, 37 Cal.App.5th at 1104.)

In determining whether a defect is trivial as a matter of law, all the facts surrounding the accident should be considered:

When a court determines whether a given defect is trivial, as a matter of law, the court should not rely merely upon the size of the depression. While size may be one of the most relevant factors to the decision. It is not always the sole criteria. Instead, the court should determine whether there existed any circumstances surrounding the accident which may have rendered the defect more dangerous than its mere abstract depth would indicate. As such, the court should view the intrinsic nature and quality of the defect to see if, for example, it consists of the mere nonalignment of two horizontal slabs or whether it consists of a jagged and deep hole. The court should also look at other factors such as whether the accident occurred at night in an unlighted area. Furthermore, the court should see if there is any evidence that other persons have been injured on this same defect.

(*Kasparian v. AvalonBay Communities, Inc.* (2007) 156 Cal.App.4th 11, 27 [citation and internal quotation marks omitted]; see also *Caloroso, supra*, 122 Cal.App.4th at 927 [“A court should decide whether a defect may be dangerous only after considering all of the

circumstances surrounding the accident that might make the defect more dangerous than its size alone would suggest”].) Thus, even a trivial defect may be actionable if, when combined with other factors, it poses a substantial danger to a reasonably careful person. (*Stathoulis v. City of Montebello* (2008) 164 Cal.App.4th 559, 567-68.)

The court’s analysis of whether a defect is trivial as a matter of law involves a two-step process:

First, the court reviews evidence regarding type and size of the defect. If that preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors bearing on whether the defect presented a substantial risk of injury. If these additional factors do not indicate the defect was sufficiently dangerous to a reasonably careful person, the court should deem the defect trivial as a matter of law.

(*Huckey, supra*, 37 Cal.App.5th at 1105 [quoting *Stathoulis, supra*, 164 Cal.App.4th at 567-68] [internal quotation marks and brackets omitted].) Summary judgment based on an inspection of photographs of the alleged defect is proper only where the reviewing court concludes that reasonable minds cannot differ regarding the depiction of the alleged defect and the surrounding environs. (*Kasparian, supra*, 156 Cal.App.4th at 15.)

“Sidewalk elevations ranging from three-quarters of an inch to one and one-half inches have generally been held trivial as a matter of law. [Citations.]” (*Huckey, supra*, 37 Cal.App.5th at 1107.) Further, in *Beck v. Palo Alto* (1957) 150 Cal.App.2d 39, 43-44, a sidewalk elevation differential of 1 and 5/8 of an inch was found to be trivial as a matter of law where plaintiff’s view was not obstructed. Here, the evidence shows that the sidewalk elevation differential was between 1/2 to 3/4 of an inch when City measured it on May 8, 2024. (Chung Decl., ¶ 4 and Exh. C; Plaintiff’s Exh. 4, City’s Responses to Special Interrogatory Nos. 86 and 88.) City’s Director of Public Works attests that City did not change, modify, or alter the sidewalk between July 13, 2023 and the date of inspection on May 8, 2024. (Chung Decl., ¶ 5.) Accordingly, a preliminary analysis reveals that the size of the sidewalk’s offset was trivial.

Accordingly, the next step to consider any additional factors bearing on whether the defect presented a substantial risk of injury. Circumstances or factors that may render a walkway defect a dangerous condition at the time of the accident include whether there were any broken pieces or jagged edges in the area of the defect; whether any dirt, debris or other material obscured a pedestrian’s view of the defect; the plaintiff’s knowledge of the area; whether the accident occurred at night or in an unlighted area; the weather at the time of the accident; and whether the defect has caused any other accidents. (*Huckey, supra*, 37 Cal.App.5th at 1105.)

In *Huckey*, the appellate court upheld the granting of summary judgment where the sidewalk differential was 1 and 7/32 inches at its highest, “[t]here were no broken concrete pieces or jagged concrete edges in the area of the height differential when plaintiff fell, and plaintiff adduced no evidence that the City had ever been notified of any

trip and fall accidents, other than plaintiff's claim, on or near the area of the height differential." (*Huckey*, *supra*, 37 Cal.App.5th at 1108.) The *Huckey* court concluded that even if plaintiff had tripped at the highest height differential, "the entire record indisputably show[ed] that the height differential was in plain sight and did not pose a substantial risk of injury to a pedestrian using 'due care' at the time plaintiff fell." (*Id.* at 1110.)

Here, as in *Huckey*, the sidewalk offset was not covered by objects or debris. (Colocho Depo., 26:23-25 and 29:16-18.) The sun was still up, and it was not foggy. (Colocho Depo., 26:18-22.) As such, the only distinguishing factor between the instant case and *Huckey* is that the offset in the instant case is significantly smaller (3/4 inch at its highest compared to 1 and 7/32 inches). Accordingly, City has met its burden to establish that the sidewalk offset was a trivial defect.

City's *prima facie* showing now shifts the burden to Plaintiff to raise a triable issue of material fact concerning whether the height differential was trivial as a matter of law under these circumstances. (*Aguilar*, *supra*, at p. 849.) However, Plaintiff has failed to meet her burden to establish a triable issue of material fact. Plaintiff's reliance on *Fajardo v. Dailey* (2022) 85 Cal.App.5th 221 is misplaced, as the *Fajardo* plaintiff's expert made a contradictory showing that the sidewalk defect measured up to 1 and 1/2 inches and the area surrounding the fall was in deteriorated condition. (*Fajardo*, *supra*, 85 Cal.App.5th at 225.) Plaintiff here has submitted no such contradictory evidence. Although Plaintiff argues that the differential "was highest at the grass side" and argues that City did not measure the differential until 10 months later, Plaintiff presents no evidence that the differential was ever greater than 1 and 1/2 inches at the site of her fall. (Opp., p. 7.) Though Plaintiff testified that she measured the differential, she could not recall what the measurement was. (Colocho Depo., 45:9-15.) As such, Plaintiff has failed to carry her burden to create a triable issue of material fact as to whether the sidewalk offset constituted a trivial defect.

Thus, the sidewalk offset was a trivial defect as a matter of law, and as such, no dangerous condition existed.

B. Liability for Dangerous Condition

Even if the sidewalk offset constituted a dangerous condition, Plaintiff has failed to raise a triable issue of material fact as to whether City is liable. A public entity is only liable for a dangerous condition on public property if either: (a) a negligent or wrongful act or omission of a public entity employee created the dangerous condition, or (b) the public entity had actual or constructive notice of the dangerous condition and there was sufficient time before the injury for the government entity to take remedial action. (Gov. Code § 835.) Here, Plaintiff does not allege that City created the dangerous condition, but rather that City had actual or constructive notice of the dangerous condition.

1. Actual Notice of Dangerous Condition

A public entity has actual notice of a dangerous condition “if it had actual knowledge of the existence of the condition and knew or should have known of its dangerous character.” (Gov. Code, § 835.2(a).) City submits a declaration from its Public Works Director, who attests that City has no records of any complaints or report of injury regarding the sidewalk where Plaintiff fell prior to July 13, 2023. (Chung Decl., ¶ 6.) Plaintiff cites to *Sambrano v. City of San Diego* (2001) 94 Cal.App.4th 225, 243 for the premise that lack of actual notice “is not dispositive of dangerousness.” (Opp. 10.) However, City raises the issue of lack of actual notice to establish its lack of liability, not to disprove whether a dangerous condition exists. Further, *Sambrano* is not helpful to Plaintiff here, as the *Sambrano* court noted that the plaintiff “fail[ed] to show the City was on notice of the dangerous condition and could have taken measures to protect against it, because the undisputed evidence was that during the past five years, there had not been any reports of such injuries.” (*Sambrano, supra*, 94 Cal.App.4th at 243.) Similarly, here, City submits evidence that it had no reports of similar injuries at the site of the subject sidewalk. Accordingly, Plaintiff fails to raise a triable issue of material fact to support that City had actual notice of a dangerous condition.

2. Constructive Notice of Dangerous Condition

A public entity has constructive notice of a dangerous condition “only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character....” (Gov. Code § 835.2(b).) Plaintiff argues that City’s affirmative defense that the sidewalk offset was “open and obvious” cuts both ways and therefore establishes that the condition was obvious. However, even assuming Plaintiff’s argument has merit, “[a] claim for constructive notice has *two* threshold elements. [Citation.] A plaintiff must establish that the dangerous condition has existed for a sufficient period of time and that the dangerous condition was obvious. [Citation.]” (*Heskel v. City of San Diego* (2014) 227 Cal.App.4th 313, 320 [original emphasis], citing *State v. Superior Court of San Mateo County* (1968) 263 Cal.App.2d 396, 400.) Here, Plaintiff sets forth no evidence to support how long the sidewalk’s condition has existed to raise a triable issue of material fact as to whether City had constructive notice to subject it to liability.

There are no triable issues of material fact to support that City had actual or constructive notice of the dangerous condition.

III. Plaintiff’s Request for a Continuance

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain

necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due.” (C.C.P. § 437c(h).)

The purpose of the declarations required by § 437c(h) is to inform the court of outstanding discovery necessary to resist the summary judgment motion: “To be entitled to a continuance, the party opposing the motion for summary judgment must show that its proposed discovery would have led to facts essential to justify opposition.” (*Scott v. CIBA Vision Corp.* (1995) 38 Cal.App.4th 307, 325-326.) Accordingly, the opposing party’s declaration in support of a motion to continue the hearing should show the following: (1) facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion; (2) the specific reasons why such evidence cannot be presented at the present time; (3) an estimate of the time necessary to obtain such evidence; and (4) the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (*Johnson v. Alameda County Medical Center* (2012) 205 Cal.App.4th 521, 532.)

City argues that the Court should not continue the hearing due to Plaintiff’s counsel’s lack of diligence, as Plaintiff has failed to notice a single deposition prior to this motion. However, the Fourth District favors continuing summary judgment motions to resolve matters on their merits, even where the need for a continuance is due to the party’s own lack of diligence and the request does not fully comply with the standards set forth in § 437c(h). (See *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 399-400 [holding that even if the need to continue a hearing on a motion for summary judgment to conduct outstanding discovery was due to a party’s lack of diligence, “the policy favoring disposition on the merits outweighs the competing policy favoring judicial efficiency.”]; *Levingston v. Kaiser Foundation Health Plan, Inc.* (2018) 26 Cal.App.5th 309 [finding that the trial court had erred in denying a request to continue a summary judgment motion even where the request was made at the hearing and the party had not met the standard for a continuance under C.C.P. § 437c(h)].)

In her Opposition, Plaintiff requests a continuance under C.C.P. § 437c(h) to conduct further discovery, specifically to depose: (1) Jimmy Chung, City’s Director of Public Works; (2) James DeMonaco, the maintenance coordinator who measured the sidewalk offset; and City’s Public Works’ person most knowledgeable (“PMK”) regarding City’s inspection practices and work orders. (Opp., pp. 10-11; Hersel Decl. ¶¶ 15-18.) However, there is no evidence, nor does Plaintiff argue, that these depositions would establish that the sidewalk offset was greater than 1 and 1/2 inches at the time of the incident to create a triable issue of material fact as to whether a dangerous condition existed. As such, the likelihood that controverting evidence may exist is insufficient to warrant a continuance for further discovery.

Thus, the Court denies Plaintiff’s request for a continuance.

The motion for summary judgment is granted.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than August 6, 2026, by 5:00 p.m.

A hearing re: proposed judgment is set for September 3, 2026, at 8:30 a.m. City is ordered to submit to the court and serve on all parties a proposed final judgment for the entirety of the case by no later than August 19, 2026. Any objection to the proposed judgment must be submitted to the court and served on all parties by no later than August 31, 2026.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600083	DOE VS DOES 1-50	MOTION TO PLACE DOCUMENTS UNDER SEAL

Tentative Ruling:

The unredacted version of the complaint sought to be filed under seal has not been lodged with the court. The hearing on the motion is continued to September 22, 2026, at 8:30 a.m. to allow moving party to lodge the unredacted version of the complaint.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601127	CHEEMA VS COMMERCIAL BANK OF CALIFORNIA	DEMURRER ON 1ST AMENDED COMPLAINT FOR QUIET TITLE OF GURSEWAK SINGH CHEEMA BY COMMERCIAL BANK OF CALIFORNIA

Tentative Ruling:

The court exercises its discretion to consider the untimely response, which the court deems to be Plaintiffs' opposition, albeit a mere paragraph unsupported by any legal authority, to which a reply was filed.

The court takes judicial notice of exhibits 1-4.

The Court sustains the demurrer with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.

Moving party is ordered to submit a proposed order consistent with this ruling by no later than August 6, 2026, by 5:00 p.m.